

United States District Court for the District of South Carolina

Piedmont Booksellers Guild v. City of Norvale

Case No. SYN-DSC-26-CV-0107 · City Parks and Events Director Declaration

Filed January 14, 2026

I, Celia Voss, declare from personal knowledge as follows. I direct the Events Division of the City of Norvale Department of Parks and Civic Spaces. I have held that position since 2021 and worked in municipal event administration for nine years before then. My division receives applications for organized use of City parks, circulates plans to departments when their operations may be affected, communicates requested changes to organizers, and prepares permit decisions. I participated in the staff work that preceded Ordinance N-2025-18 and supervise its current administration.

The ordinance covers recurring public events that include a compensated scheduled speaker. For each event date it calls for a filing at least forty-five calendar days in advance, the speaker's name, a short topic or format description, the proposed time, a site plan, attendance information, and other logistics. The scheduled assessment is \$240 for the event and \$45 for each paid speaker. A condition or denial must rest on a documented crowd, traffic, or municipal-resource risk and must be explained in writing. I instruct employees that an author's position, popularity, or criticism of Norvale is irrelevant.

The Piedmont Booksellers Guild has used Cedar Commons for fairs since 2019. Its events are valued community programs, and I am not aware of any City effort to end them. The present disagreement concerns the means and timing of advance coordination. My declaration explains the physical and administrative considerations supporting the City's position; it does not suggest that every Guild fair needs extraordinary services or that any proposed literary subject is dangerous.

Cedar Commons and Prior Operations

Cedar Commons is a downtown park with a central lawn, paved walks, a fountain, a maintenance and emergency entrance, two nearby bus boarding areas, and streets carrying ordinary business traffic. Vendor tents fit on the lawn when they remain within the approved footprint. The places that require attention are the walk near the fountain, the approach to the service entrance, and Market Lane during unloading. A stationary crowd at the reading area can overlap with people browsing at adjacent tables or moving toward transit.

Department files do not report a fight, arrest, or violent disturbance attributable to a Guild fair. They reflect two minor medical responses over the period reviewed: one involving heat-related dizziness and one involving a fall near a curb. Neither required evacuation. They also contain notes about boxes or tables shifting toward the service route, delivery vehicles remaining beyond an unloading period, and brief pedestrian accumulation when a presentation ended. These occurrences were managed through ordinary directions. They are relevant to planning without establishing that the Guild has operated recklessly.

The records have limits. We did not continuously count pedestrians, time every vehicle delay, or record each conversation between a parks employee and a vendor. Dispatch abstracts show requests for assistance but not preventive activity that generated no call. Conversely, an employee's recollection of crowding does not prove that a particular paid author caused it. In my experience, the useful predictors are the event's total attendance, layout, loading plan, presentation location and time, expected audience, and neighboring activity. Compensation alone does not measure any of those variables.

The City nevertheless must make decisions before a crowd arrives. A peaceful history informs the level of response, but it does not eliminate the need to preserve access or determine whether another reservation, construction project, or transit operation changes conditions on a particular date. Separate review of recurring dates is intended to account for those differences.

Reasons for the Advance Schedule

The forty-five-day period emerged from competing staff recommendations. Parks personnel believed many applications could be handled on a shorter schedule, while transportation and police planners requested more lead time during busy periods. Forty-five days was adopted as a uniform midpoint. It permits completeness review, circulation when needed, a response from the organizer, and preparation of written reasons. Some uncomplicated matters require little consultation; others require several offices. The period is therefore a planning window, not a prediction that every file consumes forty-five days of labor.

A presentation schedule can reveal when listeners are invited to move toward one place and when they are likely to disperse. Starting time and duration are directly useful. Format may show whether chairs, a demonstration surface, electricity, amplified sound, or a signing queue is expected. Anticipated audience is also important. The form asks for a name so the application identifies the program under the organizer's control and staff can communicate accurately about amendments. The topic field may be satisfied by a neutral phrase such as "poetry reading and questions." Employees may not demand a manuscript, political affiliation, position, or summary of ideas.

I acknowledge that name and compensation are not crowd estimates. An unpaid speaker could be popular, and a paid local writer could attract only a few listeners. The Council selected compensation as an objective boundary between controlled, scheduled programming and incidental vendor conversation. That boundary makes coverage administrable, while the later risk review still must use event facts rather than perceived controversy. In my view, the distinction is imperfect but operationally neutral.

Late author arrangements create a genuine difficulty. The Guild often cannot complete its roster by the filing date. Section 7 allows staff to consider an addition or substitution, but it does not guarantee acceptance after the deadline or prescribe a fixed response time. I try to distinguish a speaker-only change from one affecting attendance, time, equipment, or layout, although the office must examine the request before deciding which kind it is.

Fees and Administrative Work

The \$240 base amount reflects averaged intake, completeness review, site coordination, appropriate departmental circulation, applicant communication, and a written disposition. The \$45 increment reflects review of each listed presentation and the expected transition surrounding it. The underlying estimate was blended: some files take less employee time and some take more. My division does not keep a separate minute-by-minute ledger for each paid speaker, and I cannot testify that the sixth author in every application costs exactly \$45 more to review than the fifth.

The City credits receipts to event-permitting administration. The ordinance does not permit an employee to increase a fee because an author is controversial or decrease it because a viewpoint is favored. Separate charges for requested personnel, barricades, extraordinary sanitation, or equipment require an independent basis. The fixed schedule promotes consistent arithmetic, but I recognize that repeated fees affect a nonprofit differently from a large commercial organizer. Financial impact on the Guild is disputed; I do not administer its budget.

Ordinary vendors are outside the added paid-speaker provisions when they sell goods and converse incidentally at their tables. That exemption does not mean vendor activity is risk free. General rules still address tent placement, loading, capacity, insurance, and access. The Council treated a scheduled compensated presentation as a controlled program that invites a group to assemble at an announced location, whereas table conversations are dispersed and unscheduled. Staff use that classification to determine whether the ordinance applies, not to judge which activity has greater expressive worth.

When a listed speaker withdraws and a substitute uses the same slot without changing the approved operational plan, the ordinance does not impose a second speaker charge. A genuinely additional speaker requires the scheduled increment. Processing a late request still takes employee attention, but the present files do not isolate that attention as a specific dollar amount. I offer these facts so the Court can assess both the City's administrative rationale and the limitations of its cost evidence.

The 2026 Series and Available Measures

The Guild announced fairs for February 14, April 11, June 13, August 8, October 10, and December 12, 2026. Delivery of the six applications in one packet may be convenient, but each date remains subject to its own site and resource circumstances. The February filing period arrived while the Guild's author roster was incomplete. Staff have communicated that amendments will be reviewed, yet no categorical promise has been made that every late addition will be accepted. As of this declaration, I am not asserting that a particular author has been rejected because no identified amendment has produced such a decision.

Many practical measures remain available. A fixed unloading interval, temporary signs near the fountain, a continuous service lane, relocation of chairs, separation of a signing line from a bus approach, or a narrowly timed traffic post may respond to documented facts. Denial should be used only when a lawful condition cannot address the risk or when a neutral reservation or capacity rule controls. If staff recommend a restriction, the decision must identify the source and explain the relationship between the concern and the measure.

I understand the Guild proposes that review focus directly on schedule, format, expected audience, equipment, and location rather than on payment, identity, or literary subject. Those facts are useful and could support several administrative models. I also believe the City has a legitimate interest in receiving a stable account of an organized program early enough to coordinate scarce personnel. Whether the ordinance chose the constitutionally proper line is a legal question on which I offer no opinion.

No employee under my supervision has been directed to investigate an author's viewpoint. The operational record is neither a history of violence nor an absence of all concern: it shows peaceful events with manageable congestion, two minor medical calls, and recurring coordination needs. I declare under penalty of perjury that the foregoing is true and correct. Executed January 14, 2026, at Norvale, South Carolina.